KABUYUNI MINING SYNDICATE

versus

SHINTAN RESOURCES PRIVATE LIMITED

AND

SENGWA COLLIERY PRIVATE LIMITED

AND

BROTHERHOOD MINERALS PRIVATE LIMITED

AND

PROVINCIAL MINING DIRECTOR N.O
MIDLANDS PROVINCE

AND

OFFICER COMMANDING MINERALS
FLORA & FAUNA MIDLANDS PROVINCE

AND

MINISTER OF MINES & MINING DEVELOPMENT N. O

IN THE HIGH COURT OF ZIMBABWE
CHIVAYO J
BULAWAYO, 9, 14 & 17 OCTOBER 2025 AND 27 FEBRUARY 2026

Urgent Court Application for Rescission of Default Judgement

Advocate M. Ndlovu, for the applicant.
Advocate T. Mutero, for the first and third respondents.
B. Mathonsi, for the second respondent.
L. Dube, for the fourth, fifth & sixth respondents.

CHIVAYO J: The applicant filed the present urgent court application for rescission of a default judgement which was granted on the 2nd of October 2025 under HCBC 1101/25 by NDLOVU J.

The parties.

[1] The Applicant, Kabuyuni Mining Syndicate, is a duly registered mining syndicate created in terms of the Mines and Minerals Act, and has capacity to sue and be sued.

[2] The first respondent is Shintan Resources Private Limited, a company incorporated in terms of the laws of Zimbabwe, and has capacity to sue and be sued.

[3] The second respondent is Sengwa Colliery Private Limited, a company created in terms of the laws of Zimbabwe, and has capacity to sue and be sued.

[4] The third respondent is Brotherhood Minerals Private Limited, a company created in terms of the laws of Zimbabwe, and has capacity to sue and be sued.

[5] The fourth respondent is The Provincial Mining Director, Midlands Province, cited herein in his official capacity and is responsible for the administration and regulation of all mining activities and operations within the Midlands Province in terms of the Mines and Minerals Act [Chapter 21:01]

[6] The fifth Respondent is the Officer Commanding Midlands Province –CID Minerals Flora and Fauna Unit Zimbabwe Republic Police, Midlands Province, cited in his capacity as the office in the executive arm of this Republic, with a constitutional mandate to administer Police operations in and around the Midlands Province in its preservation of peace, security, law and order in his area of jurisdiction.

[7] The sixth Respondent is the Minister of Mines and Mining Development cited herein in his official capacity and is responsible for the administration of all mining activities and operations within this country

Historical Background.

[8] The applicant made an application for a special grant for coal under application number 10-2025 in the Midlands Province of Midlands for an area covering 1239 Hectares and with coordinates which were provided for in the founding affidavit. The Applicant submits that they made an application for the Special Grant following the cancellation of a Special Grant umber 849 Sengwa Colliery, which was previously in the name of an entity called Rio Zim Limited. The Special Grant was cancelled by the fourth respondent on the 15th of August 2025. Rio Zim Limited appealed to the sixth Respondent, and the same was dismissed. On the 28th of August 2025, the Applicant,

which is a syndicate, filed an application for a special grant to the sixth respondent for the benefit of the Gokwe community. The application for a special grant was still pending at the time the matter came before this court.

[9] On the 6th of October 2025, the Applicant was made aware of the mining activities within the area formerly covered by the Special Grant, which previously belonged to Rio Zim Private Limited. The Applicant asked the basis upon which the parties were carrying out mining operations and mobilizing heavy equipment within the said area. The applicant submits they were brandished an order issued by this court on the 2nd of October 2025 under HCB1101/25 per NDLOVU J wherein the Applicant was not cited as a party to the proceedings. The applicant submits that it is an interested party regarding the area in dispute. Further, applicant adds that Rio Zim Limited, the former holder of the Special Grant, was not cited at all in the matter under HCBC 1101/25, and neither was the fourth Respondent cited.

[10] The substance of the order under HCBC1101/25 is that it allowed the first and third respondents to continue mining coal pending the application for review of the cancellation of the Special Grant, which matter is pending under HCH 4881/25 in Harare High Court.

[11] When the provisional order under HCBC1101/25 was issued, the Applicant submits that it was not privy to the litigation despite being a substantially interested party to the mining location covered in its application for a special grant.

[12] The Applicant thus seeks that the provisional order under HCBC1101/25 be vacated as it was granted in the absence of an interested party. The applicant thus filed this present application on the 7th of October 2025, for rescission of judgement granted under HCBC1101/25.

Opposition by the respondents.

[13] The first, second and third respondents were opposed to the urgent court application for recission on the basis that the applicant has no statutory rights over the mining location in dispute. The fourth and sixth respondents were not opposed to the relief being sought.

[14] The fifth respondent was opposed to the relief being sought insofar as it related to it as it provided security over the mining location in dispute. The fifth respondent argued that the mining dispute was a civil matter, in which parties must contract private security, and not security from the state.

Urgency.

[15] The applicant's submission is that this is a matter that cannot follow the ordinary timelines as mineral resources are finite and the Applicant cannot be stopped from operations by an order of court superimposed on it. It is alleged that applicant was never served with any process and, let alone cited, but only to have an order infringing on its rights.

[16] In view of the fact that coal is a finite resource, and appreciative of the urgency of the matter, the court therefore issued the following **case management order:**

1. Departure from time lines set by the rule is hereby condoned and the following directions are given:

1.1. The Respondents file and serve their Notice of Oppositions and Opposing Affidavits within 24hours.

1.2. Applicant files her Answering Affidavit and Heads of Argument within 24 hours of receipt of Respondent's opposing papers.

1.3. The Respondents to file their Heads of Arguments within 24 hours of receipt of Applicant's Heads of Arguments.

1.4. The Registrar to set down the matter for hearing on the 14th of October 2025 at 1400hrs for a virtual hearing.

1.5. With immediate effect, neither Applicant nor all Respondents must carry out any mining activities at the mining location which is covered by a Special Grant Number 849 SENGWA until this matter is finalized.

1.6. 5th Respondent ensures a 24 hour deployment of uniformed members of the Zimbabwe Republic Police for the provision of security and that neither party carries any mining activities at mining location covered under Special Grant Number 849 SENGWA until this matter is finalized.

1.7. No order as to costs.

[17] The parties appeared before me again on the 14th of October 2025 through virtual hearing. On the hearing, it became apparent that papers had not been filed as per the case management order issued on the 9th of October 2025. The parties then requested a physical hearing, and the matter was set down for the 17th of October 2025. On the 17th of October, parties argued on several points in *limine* raised by the respondents, and also on the merits as quoted hereunder.

POINTS *IN LIMINE BY first and third respondents.*

i. Urgency of the matter.

[18] It is the first and third respondent's submission that no adverse consequence may befall the Applicant because it has no right to the minerals in question, no right to the area covered by the Special Grant, nor has it any mining title. For that reason, the application

fails the test of urgency.

First and third respondents pray that the matter ought to be struck off the roll of urgent matters with costs on an attorney and client scale.

ii. The application if fatally defective: a provisional order is not rescindable

[19] The first and third respondent argued that the order sought to be rescinded is provisional order, which they submitted is not rescindable. Their argument is that remedy of a rescission or setting aside is not available to a person aggrieved by the granting of a provisional order. On this basis, it is submitted the application is irregular and ought to be struck off the roll, with costs on an attorney and client scale.

iii. The application is fatally defective: Rule 29 (2) is restricted to variation of judgment.

[20] The first and third respondent submits that the present application is predicated on rule 29 (2) of the High Court Rules, 2021. It is further submitted that Rule 29 (2) is restricted to an application for variation only and not a rescission. On this point, it is argued that the application is fatally defective for the reason that it has been made in terms of a wrong/inapplicable rule.

The first and third respondents pray that the application ought to be struck off the roll with costs on an attorney and client scale.

iv. The application is irregular: applicant does not apply for joinder and leave to defend

[21] First and third respondents contend that applicant does not apply for the joinder to the main matter consequent to the rescission. The applicant further does not apply for leave to defend consequent to a rescission and joinder. They submit that, because of the abovementioned factors, the present application is irregular and ought to be struck off the roll with costs on an attorney and client scale.

v. The Applicant has no *locus standi in judicio*

[22] it was submitted that Applicant does not have a special grant or any other form of mining title, has no real and substantial interest in the area covered by the special grant and that applicant relies on some application made which has not been granted. Applicant submitted that this was not sufficient as they were of the view applicant has no right to protect. On this score, the counsel prayed that application be dismissed with

costs on an attorney and client scale.

vi. Litigation not authorised: defective resolution

[23] It is the first and third respondent's submission that a syndicate, which is a group of persons must have authorised the deponent to the founding affidavit to litigate in the name of the syndicate. In the present case, the resolution was signed by one member of the syndicate. According to the attached resolution, the authority was given by one member of the syndicate. Counsel for the first and third respondent submits that that is not sufficient, and, to that extent, the application is fatally defective and ought to be struck off the roll with costs on an attorney and client scale.

vii. Applicant barred for failure to comply with case management order.

[24] The counsel for first and third respondent submitted on the hearing day that the applicant is barred for failure to comply with the case management order issued on the 10th of October 2025. Paragraph 1.2 of the case management order had ordered that the applicant file their answering affidavit and heads of argument within 24 hours of the filing of a notice of opposition by the respondents. The first and third respondents submit that this case management order is binding on the applicant, and its failure to comply with the case management order means that applicant's answering affidavits and heads were filed out of time, and they ought to be struck out as no condonation was sought by applicant.

First and third respondents' prayer.

[25] The first and third respondents prayed that the matter be struck of the roll with costs on at attorney and client scale.

On the merits.

[26] The counsel for the first and third respondents argued that the present application for rescission lacked merit. The basis of the opposition was that the applicant does not have any statutory rights over the mining site in question, and as such, he cannot seek to rescind a decision to which they have no rights.

Second respondent's opposition.

[27] The second respondent also filed their notice of opposition. In opposition they raised several points in *limine*, outlined hereunder as follows:

i. Fatal non-joinder of Rio Zim.

[28] It is the second respondent's submission that, while Applicants repeatedly refer to Rio Zim Ltd, who were the holders of the cancelled special grant, they fail to cite it as a party to the current proceedings. Rio Zim, would by reason of the facts applicant allege, that it has an interest in the matter. The second respondent submits that Rio Zim is a necessary party to the proceedings, and that failure to cite it is fatal to the application, hence for that reason the second respondent argues that the present application is fatally defective.

ii. Incompetent application.

[29] The second respondent argues that the judgement sought to be rescinded, which is a provisional order, does not have a final effect. It is argued that the provisional order seeks to protect the status quo *ante* pending the return date. The second respondent submits that the provisional order is clearly interlocutory in nature. They further submit that it would be incompetent to seek to have it rescinded as the matter remains pending in this court and the provisional order is yet to be confirmed. The second respondent argued that the proper course would have been for Applicants to seek joinder to the matter under HCBC1101/25, so that they can seek the discharge of the provisional order on the return date.

In light of that, second respondent prayed that the application be dismissed.

Disguised appeal.

[30] It is the second respondent's argument that the Applicant points that the court was wrong in allowing relief to the Respondents to continue mining pending the return date which anticipates their application for review, challenging cancellation of second respondent's special grant. The contention is made that to do so is unlawful as their rights terminated. To the extent that the application substantively contests the *ratio decidendi* of the court in granting the provisional order. According to the second respondent, it is apparent that the present application is a disguised appeal under the label of a rescission on the grounds of error.

[31] The second respondent argues that rule 29 of the High Court Rules relate to rescission, variation or correction of orders, which would have been erroneously sought or erroneously granted and not orders that are erroneous in substance. The second

respondent submits that once a court makes a substantive decision it becomes *functus officio* and where the substantive correctness of its decision is challenged the recourse is by way of appeal and not rescission, variation or correction of the order.

iii. Lack of urgency.

[32] The second respondent submits that applicant made an application for a special grant on the 28th of August 2025, and that, at the time, they ought to have realised that first and third respondent were conducting mining activities then. The second respondent thus argues the need to act arose on the 28th of August 2025, and not on the 6th of October 2025 when they were handed a provisional order under HCBC 1101/25. The second respondent submits that this is a text book case of self-created urgency on the basis of which the court should decline urgency.

iv. No *locus standi*.

[33] it is the second respondent's submission that applicant is a syndicate. The deponent to the application attached a resolution allegedly authorizing him to act on behalf of applicant. The resolution, which is signed by an unnamed person who simply identified himself/herself as a syndicate member, is challenged by the second respondent. It is not stated who the members of the association are, whether corporate or natural, neither is it apparent in what capacity the person who purportedly signed the resolution acts in signing the resolution. Second respondent thus submits it cannot be ascertained if the resolution reflects the collective mind of the syndicate as represented by a person who speaks for the entity.

The second respondent submits that the resolution attached to the present application does not meet the requirements for a valid resolution.

On the merits by second respondent.

[34] On the merits the Applicant's cause of action is put in issue. The second respondent challenges the applicant's submission that it is an interested party which should have been cited and heard before the provisional order was granted, and that there is an error in that it was not cited when it had an interest in the matter. The supposed interest is allegedly that Applicants made an application for a special grant.

[35] Second respondents submit that the rights claimed upon are illusory and non-existent. It is submitted there is nothing in the Mines and Minerals Act [Chapter 21:05] suggesting that applicants acquire rights to a mining claim upon making application. Section 171 of the Mines and Minerals Act does not at all relate to rights to mine coal

which is what the mine is for, but rather precious metals. Rights to mine coal are only conferred in terms of processes outlined in section 299 to 301. More particularly they are conferred by the issuance of a special grant given by the President in term of section 301.

[36] Second respondent submits that the making of an application for a special grant does not accrue statutory rights but the issuance of a special grant. Until a special grant has been issued in terms of section 301, second respondent contends that applicant has no rights to protect and therefore no real and substantive interest that required their citation in a dispute concerning a breach of administrative justice in the purported cancellation by sixth Respondent of 2nd Respondent's special grant.

Fifth respondent's opposition.

[37] The fifth respondent is opposed to the court application in so far as it relates to Part 1.6 of the case management order which states that the fifth Respondent ensures a 24-hour deployment of uniformed members of the Zimbabwe Republic Police for the provision of security.

[38] Their argument is that police cannot offer private security to parties involved in a civil mining dispute but must rather contract private security companies for the services. The fifth respondent submits that since the parties have been ordered not to carry out any mining activities, any party in contempt of the order is criminally liable and will face charges. The Police will the arrest the offenders as mandated by the law.

Applicant's replica.

On the first and third respondent's points in limine.

1. **Matter not urgent.**

[39] The applicant argued that the application had already passed the stage of questions about urgency as a case management order was already issued. The applicant argued that the case management order, which ordered parties to file their papers in a short period of time, meant that the matter was treated as an urgent matter. In addition, the applicant further argued that coal is a finite resource which may be depleted if the matter is not treated with urgency.

2. **Application fatally defective: a provisional order is not rescindable**

[40] In response to the argument that a provisional order is not rescindable, the applicant argued that such is the general rule, but that the exception is when the provisional order is final in nature, and where an interested party was affected by such a decision. The

applicant cited a judgement handed down by DUBE-BANDA J, in *Hwange Colliery Company (Private) Limited v Mutuke* (30 of 2024) [2024] ZWBHC 30 who held that a provisional order is rescindable where it is final in nature and an interested party was not aware of the proceedings.

3. Application fatally defective: Rule29(2) restricted to variation of judgements.

[41] It is the applicant's submission that rule 29(2) applies to any interested party affected by an order to which they were not part of. The applicant argued that the rule 29 generally applies in their case. In addition, the applicant argued that an affidavit pleads facts and not law, such that the application is not fatally defective.

4. Application irregular, that applicant does not apply for joinder and leave to defend.

[42] In relation to the application for joinder and leave to defend, the applicant's submission was that such an application would take about 3 months to be finalised, by which time the applicant would have been prejudiced by the continued mining activities in the mine location in dispute.

5. Applicant has no locus standi.

[43] It is the applicant's submission that they are an interested party, in that they made an application for a special grant, and pending that application, they can start prospecting. The applicant submits that they must have been alerted of the litigation under HCBC1101/25 since they have interests after Special Grant in relation to Rio Zim Limited, which the first and third respondent were operating under, had been cancelled. It is the applicant's submission that, at law, whether the cancellation of the special grant was valid or otherwise, the fact is that at the time Rio Zim had no special grant. In light of that, applicant submits they had made their application for a special grant, and they are an interested party.

6. Litigant not authorised: defective resolution.

[44] The applicant submitted that a syndicate is not a body corporate, and that the resolution being signed by one member to the syndicate does not invalidate the resolution. The applicant argued that this point in limine is strange and ought to be dismissed.

7. Non-compliance with case management order

[45] The applicant admitted that they filed their answering affidavits and heads of argument late. The applicant submitted that they had challenges in securing the signature of the deponent to the answering affidavit, hence the late filing. The applicant prayed that the

court condones its non-compliance with the case management order in terms of rule 7 of the High Court Rules, 2021.

Replica by applicant on the merits.

[46] The applicant submitted that this is an application for rescission of judgment. The application is made on the basis that the judgment was granted in error, in the absence of an interested party.

[47] It was further submitted that, if any of the Respondents had a dispute with the Applicant, they ought to have cited the Applicant so that it is heard by the court. It is just and equitable that rescission be granted.

It is submitted that the application ought to be afforded with costs on a higher scale.

[48] A hybrid ex tempore judgement was delivered wherein ultimately; the court issued an order as follows:

IT IS ORDERED THAT:

1. The Urgent Court Application for Rescission be and is hereby granted.
2. The order of this court under case number HCBC1101/25 dated 2 October 2025 be and is hereby rescinded.
3. As a consequence, the Applicant be and is hereby joined to the Review Application under case number HCH4881/25.
4. Pending the Review Application under case number HCH4881/25, no party must do any mining activities at the mining location being S849, Gokwe.
5. The Zimbabwe Republic Police uniformed members to continue ensuring that there is strict compliance to paragraph 4 above.
6. No order as to costs.

[49] Pursuant to the above order, the respondents requested for written reasons for the judgment so issued. The reasons are detailed hereunder.

[50] It is of paramount importance to note that the court issued a case management order on the 10th of October 2025. This case management order departed from the ordinary timelines applicable to court applications. This is a clear indication that the matter was treated as an urgent matter the moment the case management order was issued. It is also apparent that the dispute in *casu* is over a mineral resource, coal, which may be

depleted. It is for that reason that the matter was treated as an urgent matter. The applicant acted swiftly when it was served with the court order under HCBC1101/25 on the sixth of October 2025. The applicant's urgent court application was filed on the 7th of October 2025. This court was satisfied that this was an urgent matter.

Rule 7 of the High Court Rules, 2021.

[51] This rule provides for a departure from rules in the interests of justice, as hereunder quoted:

> "7. The court or a judge may, in relation to any particular case before it or him or her, as the case may be—
>
> (a) direct, authorise or condone a departure from any provision of these rules, including an extension of any period specified therein, where it or he or she, as the case may be, is satisfied that the **departure is required in the interest of justice**;
>
> (b) give such directions as to procedure in respect of any matter not expressly provided for in these rules as appears to it or him or her, **to be just and expedient**."

[52] This court considered the points in limine and the merits of the case in totality and concluded that the mineral resource, being finite, cannot continue being extracted with material disputes of facts existing. Each party, with interests in the mining location in issue, must be accorded an opportunity to be heard in court. In the interim, no one must benefit from the finite resource. It is apparent that a party which secures services of private security would obviously have its interests protected by such a security company. Whereas the constitutional mandate of the Zimbabwe Republic Police, as outlined in section 219 of the Constitution of Zimbabwe, is primarily to ensure maintenance of law and order, it is out of that mandate that this court decided that Zimbabwe Republic Police is best placed to ensure no one benefits from the finite resource pending finalisation of matters central to the dispute.

[53] The court condoned the applicant for non-compliance with the case management order because the reasons given were reasonable in the circumstances, in that the deponent to the answering affidavit could not be located on time. The court also ultimately decided that the applicant, who showed clear interest for the benefit of the entire Gokwe Community, must be joined to the proceedings under HCBC1101/25 which were to substantively determine who was allowed to mine in the site in dispute.

[54] The first, second and third respondents had argued that a provisional order cannot be rescinded. It is common cause that the applicant was not cited and therefore not served with the application under HCBC1101/25, wherein a provisional order was issued. It is

also apparent that applicant has interests in the mine in dispute, which interest is confirmed by their application for a special grant filed to the sixth respondent. Where one registers an interest, as was decided in the case of *Hwange Colliery Company (Private) Limited v Mutuke* (30 of 2024) [2024] ZWBHC 30, the court is inclined to grant rescission of judgement.

> "….. However, my view is that a provisional order with a final effect granted without notice to an interested party may be set aside by way of a rescission of judgment because it would be default judgment anticipated in r 27 and r 29. See *Chikafu v Dodhill (Pty) Ltd and Other* SC 16 / 2009."

[55] In *casu*, the issaunce of the default judgement has drastic effects on the application for a special grant filed by the applicant. It means that the applicant will not be able to exercise any of her rights if the respondents continue their mining activities. It is also apparent that coal, which is a finite resource, may be depleted, such that even if the applicant's application for a special grant were to be granted, it may be *brutum fumen* if the finite resource is depleted. This situation therefore qualifies as an exception to the general rule that a provisional order may not be rescinded.

[56] **Rule 32(12)(b) of the High Court Rules, 2021**, provides for joinder of a party out of necessity for effectual and complete determination of the matter, as hereunder quoted:

> "(12) At any stage of the proceedings in any cause or matter the court may on such terms **as it thinks just and either on its own initiative or on application**—
>
> (a)……;
>
> (b) order any person who ought to have been joined as a party or whose presence before the court is necessary to ensure that all matters in dispute in the cause or matter may be effectually and completely determined and adjudicated upon, to be added as a party…"

[57] Accordingly, this court saw it just and reasonable that the applicant be joined to the matter as contained in this court's order above.

CHIVAYO J: ……

Nozabelo Law Chambers, applicant's legal practitioners.
Mhaka Attorneys, first and third respondents' legal practitioners.
Devittie, Rudolph & Timba Legal Practitioners, second respondent's legal practitioners.
Civil Division of The Attorney General, fourth, fifth and sixth respondents' legal practitioners.